

CONDITIONAL ACCEPTANCE OF VESSEL

Pursuant to the Purchase and Sale Agreement dated 17 March 2025 ("Purchase Agreement") between Benito Irastorza and/or Assigns ("Buyer") and the owner of record, ALO BOAT 2 LLC ("Seller") providing for purchase and sale of the Vessel, "ABOUT TIME" - one 2020 88' Sanlorenzo "Sanlorenzo SX88" motor yacht bearing Official Number 749670 and Hull identification Number SLZ00029J920, along with its tender, personal watercraft and inventory ("Vessel"), Buyer hereby "accepts" the Vessel in accordance with the Purchase Agreement subject to the following:

1. Seller's Documents: Seller shall deliver to Buyer, no later than 14 calendar days prior to Closing, those documents listed in Exhibit 1 hereto, to the extent in Seller's possession, custody, or control and to the extent required by the Buyer's flag state and customary closing practice, in a form acceptable to Buyer's attorney. The documentation that the Seller is to provide is a condition precedent to the Buyer's obligation to complete the purchase of the Vessel.
2. Security Deposit: Within four (4) calendar days of the date of this Agreement, Quesada Valdes, PLLC ("Quesada Valdes") shall transfer the Security Deposit in the amount of Four Hundred Seventy Thousand Dollars (\$470,000.00) to the trust account of Whisenand & Turner P.A. Upon actual receipt of the Security Deposit, confirmed in writing by Whisenand & Turner P.A.: (i) Whisenand & Turner P.A. shall assume all duties and obligations of the Escrow Agent under the Purchase and Sale Agreement, and (ii) Quesada Valdes shall be fully and irrevocably released from any and all responsibility or liability in its prior capacity as Escrow Agent. The provisions of the Purchase and Sale Agreement governing the Security Deposit and the role and responsibilities of the Escrow Agent shall otherwise remain in full force and effect.
3. Inventory: All items on the listing broker's listing and the report of the pre-purchase survey report are to be aboard the Vessel at Closing. Items not present at the time of the survey or otherwise excluded in writing shall not be required.
4. Closing and Delivery: The closing of the transaction and physical delivery of the Vessel as contemplated under the Purchase Agreement shall occur on or before the 16th day of June 2025, as mutually agreed by the parties ("Closing Date"). If, due to adverse sea conditions, Seller is unable to deliver the Vessel at the location specified below on or before such date, the Closing Date shall be extended to the first business day thereafter that the Vessel can make safe passage. Likewise, if the Buyer is unable to obtain insurance coverage for the Vessel on such date, the Closing Date shall be extended to the first business day thereafter that such insurance coverage can be obtained.
 - a. Closing Date:
 - i. Seller shall deliver title to, and possession of, the Vessel to Buyer outside of the territorial or of the state of Florida but within the territorial waters of the United States of America or any other location mutually agreed to by the parties; and
 - ii. Representatives of Buyer and Seller shall execute a Protocol/Declaration of Delivery and Acceptance and
 - iii. Seller shall deliver to Buyer or Buyer's agent those documents necessary or appropriate to accomplish the transfer contemplated by this Agreement; and
 - iv. Buyer shall pay the balance of the Purchase Price to Seller via wire transfer of cleared funds.

5. **Risk of Loss:** Title, ownership, and risk of loss of the Vessel shall pass from Seller to Buyer at, and upon, physical delivery of the Vessel on the Closing Date at the closing location.
6. **No Sale or Use:** Seller agrees not to offer to sell the Vessel or enter into any contract for the sale of the Vessel while the Purchase Agreement is in effect. From the date hereof through and including the Closing Date, Seller may only operate the Vessel for necessary maintenance, relocation, or crew purposes, but shall refrain from commercial or recreational use.
7. **Purchase Price:** The Seller has agreed to reduce the Purchase Price for survey deficiencies to USD\$ 4,600,000.00.
8. **Repair/Maintenance Records:** The Seller agrees to provide the Buyer with any and all repair, maintenance, and oil analysis records for the Vessel to the extent in Seller's possession, custody, or control.
9. **Engine Standards:** The Seller warrants that, to the best of Seller's knowledge, the Vessel's engines have been maintained and adhere to the manufacturer's performance standards.
10. **Extended Warranty:** The Seller agrees to execute any and all warranty cards and/or documents transferring any and all applicable extended warranties to the Buyer, to the extent such warranties are assignable and in Seller's possession.
11. **Seller's Certification Vessel's Condition and Status while in Current Seller's Ownership and Possession– To the Best of Seller's Knowledge**

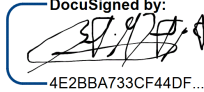
- | | | | |
|----|--|----------------|---------------|
| a. | Is there a mortgage on the Vessel? | _____ Yes | <u>X</u> No |
| b. | Are there any liens against the Vessel? | _____ Yes | <u>X</u> No |
| c. | Has the Vessel ever run aground? On March 30, 2025 - very minor damage and full repair | <u>X</u> Yes | _____ No |
| d. | Has the Vessel suffered water intrusion? | _____ Yes | <u>X</u> No |
| e. | Has the Vessel undergone warranty work? Warranty expired with previous owner | <u>N/A</u> Yes | <u>N/A</u> No |
| f. | Have the Vessel's engines been rebuilt? | _____ Yes | <u>X</u> No |
| g. | Has the Vessel sustained any material or significant damage? | _____ Yes | <u>X</u> No |
| h. | Has there ever been any damage to the Vessel's running gear? | _____ Yes | <u>X</u> No |
| i. | Has the Vessel ever been involved in an insurance claim(s) or loss? | _____ Yes | <u>X</u> No |
| j. | Has the Vessel ever been involved in a collision/allision? | _____ Yes | <u>X</u> No |
| k. | Have there been any repetitive repairs to the Vessel? | _____ Yes | <u>X</u> No |
| l. | Has there ever been a fire on board the Vessel? | _____ Yes | <u>X</u> No |
| m. | Has the Vessel ever been struck by lightning? | _____ Yes | <u>X</u> No |

If the Seller has answered "Yes" to any of the aforementioned questions, please set forth in detail and describe with particularity the facts and circumstances regarding the loss or status. If the Seller has answered "Yes" to any of the aforementioned questions, the Buyer shall have the right to revoke this Conditional Acceptance of Vessel and the deposit shall be refunded to the Buyer, and the Purchase Agreement shall become null and void.

12. Taxes and Duty: Buyer shall be responsible for any sales, use, or registration taxes post-closing. Seller is responsible for any pre-closing duties or taxes.
13. Tender(s)/PWC/Toys: Seller warrants that any and all tender(s), personal watercraft, and toys included in the sale of the Vessel, shall be placed aboard the Vessel in good and working order on or before the Closing Date, and further that Seller will pass good and marketable title to the tender(s), personal watercraft and toys to the Buyer.
14. Spare Parts/Storage: Seller agrees that any and all spare parts, in the possession, custody, or control of the Seller, for the Vessel shall be placed on the Vessel on or before the Closing Date.
15. Further Assurances. Each party hereto shall, from time to time after the delivery of this Conditional Acceptance at any other party's reasonable request and without further consideration, execute and deliver such further documents or instruments as may be reasonably required to more effectively evidence and confirm the transactions contemplated by the Agreement.
16. Warranty of Title: Seller agrees to provide an original Declaration of No Lien and Warranty of Title.
17. Assignment: Seller and Buyer agree to the assignment of the Purchase Agreement from Buyer to another individual or company.
18. Inconsistent Terms: The terms of this Conditional Acceptance of Vessel addendum shall govern over any inconsistent terms in the Purchase Agreement.
19. Ratification: Except as amended hereby, the Purchase Agreement remains in full force and effect.
20. Entire Agreement: This Conditional Acceptance of Vessel and the Purchase Agreement constitute the entire agreement and understanding regarding the Vessel and supersede prior understandings.
21. Counterparts: This Conditional Acceptance of Vessel addendum may be executed in several counterparts, each of which, when properly signed, will be respected as an original thereof. Seller and Buyer hereby agree that this Conditional Acceptance of Vessel addendum may be transmitted between the parties by facsimile machine or electronic mail in portable document format ("pdf"). The parties agree that facsimile signatures or pdf signatures constitute original signatures and that a faxed or pdf Conditional Acceptance of Vessel addendum containing the signatures (original, pdf, or faxed) of all the parties is binding on the parties. A signed copy of this Conditional Acceptance of Vessel sent by facsimile or other electronic methods shall be deemed original for all purposes.

IF THE ABOVE CONDITIONS ARE NOT ACCEPTED, THE BUYER SHALL BE DEEMED TO HAVE REJECTED THE VESSEL.

ACCEPTED BY BUYER

BUYER: 4E2BBA733CF44DF...

Dated: 5/2/2025
Name: Benito Iraastroza
Title:

~~ACCEPTED BY SELLER~~

Seller hereby accepts Buyer's Conditional Acceptance of Vessel and agrees to satisfy the above-stated contingencies in order for the Buyer to unconditionally accept the Vessel, pay the balance of the Purchase Price, and otherwise close this transaction in accordance with the terms of said Purchase and Sale Agreement.

SELLER: 
Name:
Title: Delfina Jurado

Dated: 05/02/2025

EXHIBIT 1

List of Documents Required by the Buyer for Completion

List of Documents Required by the Buyer for Completion ("Vessel")

Not less than fourteen (14) calendar days prior to the Closing Date, the Seller shall provide the Buyer's attorney with copies of the following documents required to be delivered at Closing for inspection by the Buyer. Documents noted herein shall be provided in the English language and shall be translated by a certified translator where required.

Following Closing, Buyer shall be deemed to have received, reviewed, and accepted all applicable documents listed in this Exhibit, or to have knowingly and irrevocably waived any right to object to their non-delivery.

1. The original current, valid Private Yacht Certificate of Registry of the Vessel (original to be turned over on board the Vessel if an offshore closing).
2. Certificate of Encumbrance or Transcript of Register or Abstract of Title issued by the Marshall Islands Registry dated within five (5) business days of closing, to the extent obtainable by Seller upon reasonable request and without material cost or delay, confirming that the Vessel is solely owned by the Seller and is free from all registered charges, liens, or other encumbrances; any standard/reasonable fees or costs incurred in the provision of the transcript will be for the Seller's account.
3. Permission to Sell/Transfer within the Vessel's current registry.
4. Three (3) original Bills of Sale, in such form as required by the Buyer's intended flag state, for the Vessel in favor of the Buyer executed by a duly authorized officer or director of Seller in form and manner acceptable to the Buyer's attorney and intended flag state, notarized where required; Any notarial fees, costs, and duties incurred in the provision of the Bills of Sale and related flag deletion certificate will be for the Seller's account.
5. Any classification society certificates or flag-state-issued vessel certificates in Seller's possession, custody, or control that are customarily required for registration of a private yacht under the Buyer's intended flag state, including the following documents, if applicable:
 - a) Certificate of Survey
 - b) Original International Tonnage Certificate
 - c) Radio License.
 - d) "As built" general Plans, drawings of the hydraulic and electric systems – only if in possession of the Seller
 - e) A copy of the Builder's Certificate for the Vessel.
 - f) A copy of the Manufacturer's Statement of Origin for the Vessel.
 - g) Copies of all third-party agreements regarding the Vessel and/or its ownership, operation, and management.
 - h) Copy of the Vessel's U.S. Customs entry showing that duty has been paid upon the Vessel.

- i) All plans, specifications, logbooks, including copies of navigational logbooks, blueprints, warranties, guarantees, instruction manuals, handbooks, and other technical documentation of the Vessel that are in the possession, custody, or control of the Seller (originals to be turned over on board the Vessel).
- 6. An assignment of any current warranties for the Vessel (including for any Auxiliary Vessels (if any)), to the extent such warranties are assignable and in Seller's possession, including documentation for engine, navigation, communication, and entertainment systems, if available.

VESSEL ENGINES

- j) Original EIAPP Certificates and Technical Files for each engine (including generator engines) with an output power of 130kW or greater to the extent that said certificates and technical files are legally required.
- k) Certificate of Conformity issued by the EPA (Environmental Protection Agency) for each engine (including generator engines) regardless of output power, verifying the engine's compliance with the EPA emissions rules and regulations, where applicable, as well as a clear photo of each engine's EPA emissions label(s) verifying the engine's compliance with the EPA emissions requirements for use in the United States, to the extent such EPA emissions labels are legally required;
- l) If the Yacht does not have IMO Tier III NOx engines and if the Yacht's keel was laid on January 1, 2021, or later, a letter from the builder or engine manufacturer in conformity with CG-CVC Policy Letter 21-01, only if required by the Buyer's intended flag state.
- m) If the Yacht's keel was laid after a Letter from the builder or engine manufacturer confirming that IMO Tier II, only if required by the Buyer's intended flag state.

TENDER DOCUMENTS

- 7. original manufacturer's statement of origin or title or original Registration (s) for any tenders, auxiliary Vessel (s), or personal watercraft fully assigned to Buyer.
- 8. Three (3) original United States Coast Guard Bills of Sale or equivalent for any tenders, auxiliary vessel(s), or personal watercraft notarized.

CREW DOCUMENTS

- 9. List of all crew members on the Yacht or employed by the Current Owner as of Closing, and original crew releases signed by each of them confirming that they have been paid in full, including any accrued paid leave, as of Closing, and have no claim against the Yacht or the Current Owner; Buyers counsel to prepare Crew Releases signed by all the crew members onboard or in the employ of the Seller at the date of Closing, stating that the individual crew member has no claim against the Vessel, the Seller or any other individual or company associated with the Vessel (if applicable).
- 10. Original Letter from the Vessel's captain confirming, to the best of the captain's knowledge, that all bills, fees, taxes, charges, and claims relating to the Vessel and its usage have been paid or discharged, and that all work performed on the Vessel has been paid in full.

CORPORATE DOCUMENTS

- 11. If the Seller is a corporate entity, including, but not limited to, a trust, partnership, joint venture, limited liability company, corporation, or other business entity, the following documents are required:

- a) A copy of the Certificate of Incorporation / Formation of the Seller.
- c) A copy of the entity's Operating Agreement, or other equivalent documents, and any amendments thereto.
- d) A resolution of the members and/or managers of the Seller, or equivalent, to confirm Seller's ownership of the Vessel, its Agreement to sell the Vessel to the Buyer (or the Buyer's assigns) in accordance with the Agreement and thereafter transfer or delete the Vessel from its current registry, and if applicable, a power of attorney to act on behalf of the Seller and Seller's authorization to receive sale proceeds.
- e) The original and up-to-date Certificate of Good Standing of the Seller dated no earlier than seven (7) calendar days prior to the date of Closing.
- f) The original Power of Attorney from the Seller for any person acting under a Power of Attorney that signs any document required to physically deliver the Vessel offshore and execute closing documents on behalf of the Seller, notarized (and if notarized outside of the United States, apostilled with the apostille translated into English by a certified translator).
- g) Certificate of Incumbency and/or operating agreement containing names and addresses of members and managers of the company.

In the event the shareholder(s), or equivalent, of the Selling Entity is/are also a business entity including but not limited to corporation, limited liability company, partnership, trust, joint venture, or other business entity, the documents noted in a-h will also be required for the shareholding, or equivalent, entity/entities.

- 12. Original Warranty of Title in a form acceptable to the Buyer, signed, dated, and notarized by the Seller's duly authorized officers or directors, that includes the Vessel's ultimate Beneficial Owner(s) personal warranty, guarantee, and indemnity signed, dated, and notarized by the Beneficial Owner(s) of the Seller.
- 13. Original Seller's Payment Instructions and Authority detailing the parties authorized by the Seller to receive sales proceeds, including the amounts and wire transfer details for each recipient, signed by the Seller.

CLOSING DOCUMENTS

- 14. Protocol/ Declaration of Delivery and Acceptance of the Vessel, to include a Vessel offshore position report at the time and date of delivery, signed by the Seller and the Buyer or their duly authorized representatives.
- 15. Copy of Seller's signed and dated Closing Statement, signed by the Seller and all brokers to be paid by the Seller.
- 16. Any other document as reasonably required by the Buyer to register the transfer of title and ownership of the Vessel under the Buyer's chosen flag state; provided, however, that the Buyer shall notify the Seller of such requirements as soon as practicable after the date of this Agreement, but at least 5 calendar days prior to Closing.